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प्रश्न की संख्या
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questions

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इस हाशिए में नहीं
लिखना चाहिए
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b)

Law as defined by Kroeber is the social control for any deviance in behaviour opposite of social norms.

Law in primitive society

Primitive societies are bound by close kinship ties, solidarity, close cooperation, reciprocity, community interconnectedness. Law is administered by socio-cultural phenomenon.

Necessity to maintain social order is the primary aim of primitive society as they can't afford hostility within society bound by kinship bond.

Appraisal different from state societies

State societies are governed by

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authority and legitimacy
↓
use of physical force
Difference between state and statelike

<u>State</u>	<u>Statelike</u>
→ Always authority at top	→ not always for ex - not in BAN, signatory lineage
→ maintenance of welfare is priority	→ Social control is priority
→ use of police, physical force	→ use of soft methods such as ordeals, mockery.
→ Bureaucratic administration	→ Administration by kins

methods in primitive societies

① Identification of breach of conduct

→ Ordeals such as in Malle → beating of hot iron axe
→ Oaths - such as in South India → saying 'Gharani Gharani'

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② Implementation of law

- Public opinion and mockery
- Withdrawal of respectability
- Soft methods - such as song duelling in Inuits
- Specie throwing ceremony in Australian aborigines to resolve disputes

Evaluation

Thus in primitive societies informal methods such as song duelling and soft methods used for maintaining law as aim is to maintain social order and not punish, but to establish justice and purify soul.